

authority either by charter or prescription to remove any one from the freedom, and that they have just cause to remove him; yet it appears by the return, that they have proceeded against him without (a) hearing him answer to what was objected, or that he was not reasonably warned, such removal is void, and shall not bind the party, (b) *quia quicumque aliquid statuerit parte inaudita altera, æquum licet statuerit, haud æquus fuerit*, and such removal is against justice and right (E).

As to the third question, if they have power by charter or prescription to disfranchise one, and afterwards the (c) Judges of the King's Bench award a writ to them to restore him, or signify the cause, &c. and they certify a sufficient cause to remove him, but it is false; then the Court cannot award a writ to restore him, neither can [99 b] any issue be taken thereupon, because the parties are strangers, and have no day in Court (F); (d) but the party grieved may well have an action upon the special matter against those who made the certificate, and aver it to be false; and if it is found for him, and he obtains judgment against them, so that it may appear to the justices that the causes of the return are false, then they shall award a writ of restitution; and this is proved by reason of the book of 9 H. 6. 44 a. where it is held, that upon a *corpus cum causa*, if the cause returned be sufficient, but in truth is false, the Court ought to remand the prisoner, and he is at no mischief, for if they have no authority, or the cause be false, he may have a writ of false imprisonment, (*vide* Fitz. tit. *Corpus cum causa*, 2. the said cause of 9 H. 6. 44. well abridged.) So in the other, upon such false return, the party grieved may have a special action upon his case as is aforesaid (G). Also if the party grieved, who is so disfranchised, is for the causes of his disfranchisement committed to prison, or if his shop is shut up, or if with force he is removed out of their assembly, &c. in these and the like cases he may have an action of false imprisonment, or an action of trespass *quare domum fregit*, or of assault and battery; and in those actions, the causes of his disfranchisement ought to be pleaded, and shall be decided according to law, 8 E. 3. 437. 8 Ass. 29. 31. If a layman is patron of an hospital, he may visit it, and depose or deprive the master for good cause: but if he is deprived without just cause, and by colour thereof is ousted, he shall have an assise because he has no other remedy; but if the Ordinary deprives a master who is ecclesiastical without a cause, he shall not

tried for it by the corporation." Per Lord Mansfield, C.J. *Rex v. Richardson*, 1 Burr. 539. In *Lord Bruce's case*, 2 Strange 819. the Court says, "the modern opinion has been that a power of amotion is incident to the corporation;" and of that opinion was the Court in *Rex v. Richardson*, *ub. sup.* and per Lord Mansfield, C.J. *ib.* "The law of corporations was not so well understood and settled at the time of *Bagg's case*, as it has been since. And whether a power of amotion was incident to the corporation could be no part of the question in judgment in that case, or necessary to the determination of it. And the distinction there taken as to the mode of trial is certainly not law; for though the corporation has a power of amotion by charter or prescription, yet, as to the first kind of misbehaviours which have no immediate relation to the duty of an office, but only make the party infamous and unfit to execute any public franchise; those ought to be established by a previous conviction by a jury according to the law of the land." *Vid.* Com. Dig. Franch. F. 33. F. 34.

(a) 2 Sid. 97. 1 Sid. 14, 15. Palm. 453. 1 Roll. Rep. 225. 1 Mod. Rep. 287. Styl. 447. 453.

(b) 6 Co. 52 a.

(E) Acc. *Rex v. Gaskin*, 8 T. R. 209.

(c) Doct. pla. 189.

(F) The stat. 9 Ann. c. 20. § 2. gives a traverse of the return in all such cases as the principal case. *Vid.* Bull. N. P. 204.

(d) 1 Mod. Rep. 83. 3 Keb. 401. 430. 10 Co. 139 b.

(G) "Although a return be true in words; yet if it is false in substance an action will lie," per Buller, J. *Rex v. Lyme Regis*, Dougl. 159. citing *Braithwaite's case*, 1 Vent. 19. And the action will lie for a *suppressio veri* in a return, as well as for an *allegatio falsi*. *Rex v. Lyme Regis*, *ub. sup.* *Vid.* *Rex v. Mayor of Rippon*, 1 L. Raym. 564. Com. Dig. Mandamus D. 6.